

25STCV04591 25STCV04591

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-28

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C407%2C07%2F28%2F2026

Source SHA-256: 341590cc316503f67c5238eea4efcf4dd240a67b5d0011f97a8d14737367e13c

Case Number: 25STCV04591 Hearing Date: July 28, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

28, 2026 TRIAL

DATE: Not set

CASE: Michael Blakenship v. General Motors, LLC

CASE NO.: 25STCV04591

DEFENDANT

GENERAL MOTORS LLC'S MOTION FOR COMPLIANCE PURSUANT TO C.C.P. § 871.26; AND REQUEST
FOR SANCTIONS

MOVING PARTY: Defendant

General Motors, LLC

RESPONDING PARTY: Plaintiff Michael

Blakenship

I. INTRODUCTION

This is a

Song-Beverly action. On May 20, 2026, defendant

General Motors, LLC ("GM") filed this motion to compel Plaintiff, Michael

Blakenship, to comply with his initial deposition as required under Code of

Civil Procedure (CCP) sections 871.26, subdivisions (c)(1). GM also requests sanctions against Plaintiff's counsel in the amount of \$1,500 as required under CCP § 871.26(j)(2).

On July 21,
2026, Plaintiff filed an opposition.

At the time
of this writing, no reply had been filed.

II. LEGAL STANDARD

CCP section 871.26 allows for an expedited
discovery and resolution process in "lemon law" matters:

"(c)

Within 120 days after the filing of the answer or other responsive pleading,
all parties have the right to conduct initial depositions, each not to exceed
two hours, of the following deponents:

(1) The
plaintiff.

(2) The
defendant, and if the defendant is not a natural person, the person who is most
qualified to testify on the defendant's behalf. This deposition shall be
limited to the topics listed in subdivision (i).

(CCP, § 871.26(c).)

In the event a plaintiff fails to timely provide
these disclosures, CCP section 871.26 requires that the court sanction counsel
\$1,500.00 for each such failure:

(j) Unless the party failing to comply with this
section shows good cause, notwithstanding any other law and in addition to any
other sanctions imposed pursuant to this chapter, a court shall impose
sanctions as follows:

(1) A one-thousand-five-hundred-dollar (\$1,500)

sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

(2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).

(CCP, § 871.26(j)(1)-(2).)

III. DISCUSSION

The court will grant the motion. Plaintiff did not appear for deposition on the date he provided to GM. (Rodriguez Decl., ¶¶ 7-10.) Plaintiff did not appear for deposition within 120 days of the filing of GM's responsive pleading.[1] Plaintiff therefore violated the requirement. For this reason, Plaintiff is ordered to appear for deposition. Further, Plaintiff's counsel is ordered to pay sanctions of \$1,500.00.

IV. CONCLUSION

The motion is GRANTED. Plaintiff is ordered to appear for deposition within 15 days of this order. Plaintiff's counsel is ordered to pay sanctions in the total amount of \$1,500.00, payable within 15 business days.

Moving Party to give notice.

Dated: July 28, 2026

Brock T. Hammond

Judge of the Superior Court

[1] GM filed a demurrer to the Complaint on May 8, 2025. (See Rodriguez Decl., ¶ 3.)